

Αθήνα, 04-11-2024

Αριθ. Πρωτ.: 3038

Απόφαση 41/2024

(Μονοπρόσωπο Όργανο)

Ο Πρόεδρος της Αρχής, ως μονοπρόσωπο όργανο κατά το άρθρο 17 παρ. 1 του ν. 4624/2019 (ΦΕΚ Α' 137), στο πλαίσιο των αρμοδιοτήτων που προβλέπονται στα άρθρα 4 παρ. 3 και 10 παρ. 4 του Κανονισμού Λειτουργίας της Αρχής (ΦΕΚ Β' 879/25.02.2022), συνεδρίασε μέσω τηλεδιάσκεψης την 26η-10-2023 προκειμένου να εξετάσει την υπόθεση που αναφέρεται κατωτέρω στο ιστορικό της παρούσας απόφασης. Παρούσα χωρίς δικαίωμα ψήφου ήταν η Κυριακή Καρακάση, νομική ελέγκτρια – δικηγόρος, καθώς και η Ειρήνη Παπαγεωργοπούλου, υπάλληλος του τμήματος διοικητικών υποθέσεων, ως γραμματέας.

Η Αρχή έλαβε υπ' όψιν της τα παρακάτω:

Υποβλήθηκε ενώπιον της Αρχής Προστασίας Δεδομένων η υπ' αριθμ. πρωτ.

Γ/ΕΙΣ/12619/16-12-2022 καταγγελία του Α, με την οποία ο τελευταίος καταγγέλλει τη μη ανταπόκριση του καταγγελλόμενου φροντιστηρίου με την επωνυμία «ΓΡΙΒΑΣ ΧΑΡΑΛΑΜΠΟΣ – ΜΟΥΤΖΟΥΡΗ ΑΝΑΣΤΑΣΙΑ Ο.Ε.» διά του ομορρύθμου εταίρου του, Β, στο δικαίωμα πρόσβασης σε προσωπικά δεδομένα του ανήλικου τέκνου του που άσκησε με γραπτά ηλεκτρονικά μηνύματα (sms). Ειδικότερα, στις 03-05-2022 ο καταγγέλλων απέστειλε στον προαναφερόμενο ομόρρυθμο εταίρο, Β, κατόπιν σχετικής τηλεφωνικής επικοινωνίας που είχε μαζί του, ηλεκτρονικό μήνυμα (sms) ζητώντας τις αποδείξεις παροχής υπηρεσιών που έχουν εκδοθεί για τα μαθήματα που παρακολουθούσε στο φροντιστήριο του τελευταίου το ανήλικο τέκνο του. Ενόψει δε του ότι δεν ικανοποιήθηκε, κατά τους ισχυρισμούς του, το ως άνω αίτημα, ο καταγγέλλων επανήλθε με τα από 09-12-2022 και 14-12-2022 ηλεκτρονικά του μηνύματα ζητώντας τα φορολογικά παραστατικά τόσο του έτους 2021 όσο και αυτά που εκδόθηκαν μέχρι και τον Δεκέμβριο του έτους 2022 καθώς επίσης και ενημέρωση για την εκπαιδευτική πορεία του ανήλικου τέκνου του. Σύμφωνα δε με τα καταγγελλόμενα, και παρά το ότι ο Β διαβεβαίωσε με ηλεκτρονικό του μήνυμα τον καταγγέλλοντα περί του ότι έχει αποστείλει τα ζητηθέντα στοιχεία, ο τελευταίος δεν τα έχει παραλάβει.

Η Αρχή, στο πλαίσιο εξέτασης της ανωτέρω καταγγελίας, με το με αριθμ. πρωτ.

Γ/ΕΞ/463/23-02-2023 έγγραφό της, ζήτησε από το καταγγελλόμενο φροντιστήριο, και συγκεκριμένα από τον ανωτέρω ομόρρυθμο εταίρο, Β, διευκρινίσεις επισημαίνοντας συναφώς την πάγια νομολογία της Αρχής, δυνάμει της οποίας ο ασκών τη γονική μέριμνα του ανήλικου τέκνου του (άρθρα 128 και 1510 ΑΚ) έχει καταρχήν ως νόμιμος εκπρόσωπός του το δικαίωμα πρόσβασης, κατά το άρθρο 15 του ΓΚΠΔ, στα στοιχεία που αναφέρονται στο ανήλικο τέκνο του, εκτός εάν προβλέπεται διαφορετικά από δικαστική απόφαση (όπως απόφαση που ορίζει ως ασκούντα τη γονική μέριμνα τον άλλο γονέα ή απόφαση απαγόρευσης επικοινωνίας με το παιδί). Ειδικότερα, η Αρχή ζήτησε διευκρινίσεις εάν ο καταγγέλλων υπέβαλε, όπως ισχυρίζεται, δικαίωμα πρόσβασης σε δεδομένα που αφορούν το ανήλικο τέκνο του και σε ποια συγκεκριμένα, καθώς και εάν και με ποιον τρόπο ανταποκρίθηκε το καταγγελλόμενο στα ως άνω αιτήματα ή και για ποιο λόγο τυχόν δεν χορηγήθηκαν τα αιτηθέντα στοιχεία εμπροθέσμως, αλλά και εάν πράγματι έχει χορηγήσει ο Β στον καταγγέλλοντα αντίγραφα των εκδοθέντων φορολογικών παραστατικών και σε αντίθετη περίπτωση για τους λόγους της μη χορήγησης αυτών διευκρινίζοντας, επιπλέον, σε ποιο όνομα εκδόθηκαν τα ζητηθέντα φορολογικά παραστατικά και ποια ακριβώς δεδομένα περιλαμβάνονται σε αυτά. Ζητήθηκε δε με το αυτό ως άνω έγγραφο της Αρχής όπως επισυναφθούν όλα τα σχετικά έγγραφα προς τεκμηρίωση των ζητηθεισών διευκρινίσεων.

Κατόπιν αυτού, το καταγγελλόμενο φροντιστήριο απέστειλε τη με αριθμ. πρωτ.

Γ/ΕΙΣ/1752/08-03-2023 απάντησή του προς την Αρχή, σύμφωνα με την οποία ο γιος του καταγγέλλοντος δεν παρακολούθησε μαθήματα κατά το ακαδημαϊκό έτος 2022-2023 και ως εκ τούτου δεν συνεχίστηκε η συνεργασία με την πρώην σύζυγο του τελευταίου με την οποία

και επικοινωνούσε το καταγγελλόμενο φροντιστήριο για την πρόοδο του ανηλίκου. Λόγω δε του ότι εκ της ανωτέρω σημείωσης δεν απαντήθηκε κανένα εκ των συγκεκριμένων

1 Βλ. σχετικές αποφάσεις 24/2009, 21, 22 και 53/2010, 130/2013, 18/2018, 4/2020, 26/2021 της Αρχής,

δημοσιευμένες στην ιστοσελίδα της www.dpa.gr

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questions raised by the Authority in its initial letter no. Γ/ΕΞΕ/463/23-02-2023, sent to the respondent, and the letter no. Γ/ΕΞΕ/1449/07-06-2023, with which the latter was once again requested to promptly provide the clarifications requested, while the Authority reminded the respondent of the obligation arising from the GDPR for every data controller to cooperate with it (see Article 31 GDPR), otherwise, an administrative fine is threatened (see Article 83 par. 4 a' GDPR). Subsequently, due to the respondent's failure to respond, the Authority sent the reminder email no. Γ/ΕΞΕ/2246/06-09-2023 to the respondent educational institution, which replied with its message no. Γ/ΕΙΣ/6272/06-09-2023 stating: "DEAR MADAM, I HAVE ALREADY SENT RESPONSES AS WELL AS THE RELEVANT EVIDENCE."

Following this, the Authority summoned the respondent educational institution to a hearing before the President of the Authority as a single-member body via videoconference on 26-10-2023, with the summons no. Γ/ΕΞΕ/2594/17-10-2023 for the respondent educational institution and the summons no. Γ/ΕΞΕ/2585/17-10-2023 for the complainant. In the aforementioned videoconference session, the respondent educational institution did not attend despite having received the summons and assured the Secretariat of the Authority, which proactively contacted it by phone, that it would appear before the President of the Authority. The complainant, however, attended in person and supported the content of his complaint, emphasizing that the contested right of access he exercised before the respondent as the data controller was never satisfied. After this hearing, the aforementioned complainant was granted a deadline until 30-10-2023 to submit supplementary evidence, particularly regarding the proof of not being deprived of parental responsibility for the minor child on behalf of whom the contested right of access was exercised.

Subsequently, the complainant timely submitted the supplementary documents no. Γ/ΕΙΣ/7629, 7630, 7632, and 7645/27-10-2023, namely his Responsible Declaration dated 26-10-2023 stating that he is the holder of parental responsibility for his minor child, the screenshot from the electronic monitoring system of judicial cases "SOLOMON," which shows that a legal remedy filed against the complainant regarding the temporary regulation of status was rejected, a note accompanying the relevant documents to the Authority stating that the holder of parental responsibility was both during the period for which he requested the contested data of his minor child and currently, as well as the extrajudicial response dated 02-10-2023 of the complainant to his ex-wife, served with the no. ... service report of the Judicial Officer of the Court of First Instance of Athens, G, which refers to the no. ... Decision of the Single-Member Court of First Instance of Athens, according to which, as the complainant states, the request of his opponent to deprive him of parental responsibility over his minor child was rejected.

The Authority, having taken into account the above,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Since the provisions of Articles 51 and 55 of the General Data Protection Regulation (Regulation (EU) 2016/679 – hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137) indicate that the Authority has the competence to supervise the application of the provisions of the GDPR, this law, and other regulations concerning the protection of individuals from the processing of personal data. Article 5 par. 1 of the GDPR sets out the principles that must govern a processing operation. According to the principle of accountability introduced by this article, it is stated in paragraph 2 that the data controller "bears the responsibility and is in a position to demonstrate compliance with paragraph 1 ('accountability')." As the Authority has ruled,² the GDPR adopted a new compliance model, the central point of which is the principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and policies to ensure that the processing of data is in accordance with the relevant legislative provisions. Furthermore, the data

controller is burdened with the further duty to demonstrate himself and at any time his compliance with the principles of Article 5 par. 1 GDPR.

2 See Authority decision 26/2019, consideration 8, available on its website.

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2. Since according to Article 15 paragraphs 1, 3, and 4 of the GDPR "1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if that is the case, the right of access to the personal data and to the following information: a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular, recipients in third countries or international organizations, d) where possible, the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, e) the existence of the right to request from the data controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject or the right to object to such processing, f) the right to lodge a complaint with a supervisory authority, g) when the personal data are not collected from the data subject, any available information as to their source, h) the existence of automated decision-making, including profiling, referred to in Article 22 paragraphs 1 and 4 and, at least in those cases, significant information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject. 2. [...] 3. The data controller shall provide a copy of the personal data undergoing processing. [...] If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information shall be provided in a commonly used electronic format. 4. The right to obtain a copy referred to in paragraph 3 shall not adversely affect the rights and freedoms of others." These provisions establish the right of access of the data subject to their personal data. In the context of this right, the data subject must, on the one hand, have access to personal data that has been collected and concerns them, in order to be informed and to verify the accuracy and nature of the processing of their data and to verify the lawfulness of the processing, and on the other hand, be able to exercise this right easily and at reasonable intervals. The data controller must provide remote access to a secure system through which the data subject can gain direct access to the data concerning them.

Furthermore, the Authority consistently accepts that the data subject has the right to know whether personal data concerning them is being processed, as well as to gain knowledge of it, without the need to invoke a legitimate interest since this is inherent and constitutes the basis of the right of access, that is, the right of the data subject to be informed of information concerning them that has been recorded in a file maintained by the data controller, so that the fundamental principle of law for the protection of personal data, which consists of the transparency of processing as a prerequisite for any further control by the data subject of its lawfulness, is realized. Similarly, there is no requirement to invoke the reasons for which the data subject wishes to exercise the right of access. Furthermore, the obligation to satisfy the right of access is universal, meaning it concerns all information relating to the data subject and, additionally, does not depend on the invocation of the reasons for exercising the right. Consequently, the satisfaction of the right does not depend on a prior assessment by the data controller as to whether the exercise of the right is justified or not.

Moreover, by proper interpretation and application of paragraph 1 of Article 15 of the GDPR, the data controller is not exempted from its obligation to provide information.

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against the data subject solely on the grounds that the specific data in question does not exist in a file maintained by them.

3. Because according to Article 12 of the GDPR "1. The data controller takes appropriate measures to provide the data subject [...] with any communication in the context of Articles 15 [...] 2. The data controller facilitates the exercise of the rights of data subjects provided for in Articles 15 [...] 3. The data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without delay and in any case within one month of receiving the request. This deadline may be extended by a further two months, if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of

this extension within one month of receiving the request, as well as the reasons for the delay. [...] 4. If the data controller does not act on the request of the data subject, the data controller informs the data subject without delay and at the latest within one month of receiving the request, of the reasons for not acting and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy."

4. Because according to the provision of Article 31 of the GDPR it is provided that "The data controller and the processor and, where applicable, their representatives cooperate, upon request, with the supervisory authority in the performance of its tasks."

5. Because Article 1510 of the Civil Code regarding parental care stipulates, among other things, that "The care for the minor child is a duty and a right of the parents (Parental Care), which they exercise jointly and equally. Parental care includes the custody of the person, the management of the property, and the representation of the child in any case or legal transaction or litigation concerning the person or property of the child...". Furthermore, Article 1513 of the Civil Code stipulates, among other things, the following: "In cases of divorce or annulment of marriage or dissolution or annulment of a cohabitation agreement or cessation of cohabitation of spouses or parties to a cohabitation agreement and provided that both parents live, they continue to exercise parental care jointly and equally. The parent with whom the child resides undertakes the actions provided for in the first paragraph of Article 1516, after prior notification of the other parent."

6. Because according to established case law of the Authority, as mentioned above, the person exercising parental care for their minor child (Articles 128 and 1510 of the Civil Code) has as a general rule the legal right of access to the data concerning their minor child, unless otherwise provided by a court decision (such as a decision designating the other parent as the one exercising parental care or a decision prohibiting contact with the child). Specifically, in the case under consideration, the complainant, as the one exercising parental care for their minor child jointly and equally with their spouse, has the right of access to the data of the latter, namely the requested tax documents that have been issued as well as other information regarding the educational progress of their minor child, as derived from the combination of the provisions of Articles 1510 and 1513 of the Civil Code and Article 15 of the GDPR, without the need for further demonstration of a specific legal interest on their part. This is because the complainant, as the one exercising parental care for their minor child, is identified with the subject of the specific data. Therefore, the entity being reported, as the data controller, is obliged, within the framework of providing services concerning them, to satisfy through their legal representative the relevant access rights exercised by the father and the one exercising parental care for the minor child.

7. Because in this case, the complainant exercised the right of access on behalf of their minor child before the reported data controller, in their capacity as the one exercising parental care, as stated above, which does not appear to have been revoked. Specifically, the complainant requested from the reported tutoring center and specifically from the general partner, and thus the legal representative of it, B, to gain access to tax documents concerning the provision of services to their minor child as well as information regarding

11 See, for example, relevant decisions of the Authority 24/2009, 21, 22 and 53/2010, 130/2013, 18/2018, 4/2020, 26/2021, 37/2022.

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for the educational path of the latter. Moreover, the complainant exercised the contested right of access in a clear manner through written messages, including full details of both himself and his child as a student of the reported tutoring center. From the aforementioned messages, which were submitted before the Authority, it is evident, likewise in an indisputable manner, the entirely lawful exercise of the complainant's right of access. Furthermore, as previously stated in paragraph 2 of this document with reference to the case law of the Authority, the satisfaction of the right of access does not require the invocation of a legal interest, as the legal interest (even if moral) of the subject to be informed of information concerning them, which has been recorded in a file maintained by the data controller, is considered given, so that the fundamental principle of law for the protection of personal data, which consists of the transparency of processing as a prerequisite for any further control of its legality by the data subject, is realized. In any case, the exercise of the right of access is not required

to take place in a specific form or ceremoniously, e.g., by invoking the provisions of the GDPR or by explicitly referring to the exercise of the right.

However, the above requests, which were made in writing on 03-05-2022 as well as on 09-12-2022 and 14-12-2022 via SMS sent to B's mobile phone, as extensively mentioned above, do not appear from the file's evidence to have been satisfied by the data controller, as there is no response regarding them. The reference of the reported party in its response no. Γ/ΕΙΣ/6272/06-09-2023 that "it has sent the corresponding receipts," besides being entirely vague, is not proven in any case by the submission of the relevant response to the complainant, while the latter claims that up to the day of the meeting before the Authority, his relevant request had not been satisfied. Therefore, according to what is stated in paragraphs 2 and 3, the reported party was obliged to respond through its legal representative and indeed in a timely manner by sending the requested details of the minor child that it possessed and/or at least informing him of the fact that it does not retain any data in its file concerning the minor child, namely for the school year 2022-2023. However, from the actual circumstances and the evidence presented to the Authority, it was not proven that the reported party responded appropriately to the complainant.

Given these facts, since it is not proven that the right of access was satisfied, and indeed within the deadlines provided by the GDPR, or the justified non-satisfaction thereof as previously indicated, a violation of Article 15 of the GDPR in conjunction with the provisions of Article 12 paragraphs 3 and 4 of the GDPR is established.

8. Furthermore, from the above factual circumstances, it appears that the data controller showed absolutely no willingness to cooperate with the Authority by providing clarifications regarding the complaint concerning it. Specifically, it ignored and did not take care to respond clearly to the specific questions posed for the first time by the Authority in its letter no. Γ/ΕΞΕ/463/23-02-2023, while the reported party sent no response to the Authority's letter no. Γ/ΕΞΕ/1449/07-06-2023. Only about three (3) months after receiving the second aforementioned letter and after the Authority sent another reminder (see letter no. Γ/ΕΞΕ/2246/06-09-2023), it responded that it had sent the corresponding receipts without attaching any document that would prove the above claim and without providing any other response to the questions initially posed by the Authority for the crystallization of the factual circumstances of the case under examination. In the question posed by the Authority, in the context of exercising its investigative and auditing powers, regarding the name under which the relevant tax documents related to the provision of services to the complainant's minor child were issued and the data contained therein, the reported tutoring center provided no response. In this way, the reported party violated, as the data controller, the obligation arising from the aforementioned Article 31 of the GDPR, which is

13 See also DPA 4/2020, paragraphs 8-9.

14 See paragraph 10 of Decision no. 26/2021 of the Authority.

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It is self-contained and its violation incurs the imposition of the administrative fine of Article 83, paragraph 4, subparagraph a of the GDPR.

9. Whereas, according to the previous considerations, despite the intervention of the Authority that addressed the relevant complaint and specifically after the passage of approximately eight months from this intervention, the right of access of the complainant from the complained foreign language tutoring center has not yet been satisfied, as detailed above. Given these facts, a violation of the right of access under Article 15, paragraph 1 of the GDPR is established, in conjunction with the provisions of paragraphs 1, 3, and 4 of Article 12 of the GDPR. Furthermore, a violation of the independent obligation of the respondent as the data controller to cooperate with the supervisory authority as stipulated in Article 31 of the GDPR is also established.

10. Whereas, according to the GDPR (Recital 148), in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, should be imposed for each violation of the Regulation, in addition to or instead of the appropriate measures imposed by the supervisory authority in accordance with this Regulation. Based on the above, the Authority deems it appropriate to exercise its corrective powers under Article 58, paragraph 2 of the GDPR in relation to the established violations

and to impose, in application of the provision of Article 58, paragraph 2, subparagraph (h) of the GDPR, an effective, proportionate, and deterrent administrative monetary fine under Article 83 of the GDPR, both for the restoration of compliance and for the punishment of the unlawful behavior.

11. Whereas the violation of the rights of data subjects provided for in Articles 12-22 of the GDPR incurs the imposition of sanctions under Article 83, paragraph 5, subparagraph b of the GDPR, while the violation of the obligations of the data controller provided for in Articles 25 to 39, among others, incurs the imposition of sanctions under Article 83, paragraph 4, subparagraph a of the GDPR. Furthermore, the Authority took into account the criteria for the assessment of fines set out in Article 83, paragraph 2 of the GDPR, the aforementioned paragraph 5, subparagraph b of the same article, according to which the violation of the provisions regarding the rights of data subjects falls under the highest category of the administrative fine grading system, as well as the also aforementioned paragraph 4, subparagraph a of the same article regarding the obligation arising from Article 31, among others, of the GDPR applicable in the present case, the Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679 issued on 03-10-2017 by the Article 29 Working Party (WP 253), the Guidelines of the European Data Protection Board for the calculation of administrative fines under the GDPR, as well as the factual data of the examined case and in particular:

A. For the violation of the provision of Article 15, paragraph 1 in conjunction with paragraphs 1, 3, and 4 of Article 12 of the GDPR regarding the failure of the respondent to satisfy the right of access of the complainant as detailed above, the Authority, weighing the criteria of the aforementioned Recital 148 of the GDPR, took into account the following:

- i. The fact that the violation of the provisions regarding the rights of data subjects falls, according to the provisions of Article 83, paragraph 5, subparagraph b of the GDPR, under the highest category of the administrative fine grading system.
- ii. The fact that the respondent deprived the complainant of the opportunity to obtain information concerning their minor child.
- iii. The fact that the respondent did not satisfy the right of access exercised by the complainant under Article 15, paragraph 1 of the GDPR.
- iv. The fact of the long duration of non-satisfaction of the right of access despite the intervention of the Authority.

18. See EDPB, Guidelines 04/2022 on the calculation of administrative fines under the GDPR, version 2.1, adopted on 24 May 2023, which states, among other things (see pages 3 and 6), that they apply complementarily in relation to the aforementioned Guidelines for the application and determination of administrative fines for the purposes of Regulation 2016/679, WP253.

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v.

The fact that the violation in this case affected one (1) natural person as the subject of personal data in relation to the satisfaction of the right of access.

vi.

The fact that the violation of the right of access is attributed to the negligence of the respondent due to ignorance of the provisions of the GDPR and therefore the failure to take relevant compliance measures.

vii.

The fact that the violation of the right of access concerns simple personal data of the minor child of the complainant.

viii.

The absence of any actions that the respondent could have taken and did not take to mitigate the damage suffered by the data subject, specifically the possibility to satisfy, even if late, the right of access or to inform about the possible non-existence of relevant data in their records.

ix.

The absence of any previous established violations by the respondent, as a relevant audit shows that no administrative sanction has been imposed on them by the Authority to date.

x.

The fact that from the information presented to the Authority, based on which it established the violation of the GDPR, the data controller did not derive any financial benefit, nor did they cause material damage to the complainant.

xi.

The fact that the respondent data controller is organized under the corporate form of a General Partnership.

B. For the violation of the obligation to cooperate with the Authority under Article 31 of the GDPR, which falls under the category of paragraph a of paragraph 4 of Article 83 of the GDPR regarding the system of administrative fines:

i. The ongoing nature of the non-cooperation of the respondent through their legal representative, B, with the Authority, as detailed above.

ii. The difficulty caused to the Authority regarding the investigation of the validity of the complaint concerning the violation of the right of access.

iii. The fact that this specific violation constitutes an isolated case, to the extent that no other related complaint against the same respondent has been brought before the Authority.

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iv. The fact that the respondent data controller is organized under the corporate form of a General Partnership.

12. Based on the above, the Authority decides that administrative sanctions, as mentioned in the operative part, must be imposed on the respondent as the data controller, which are deemed proportionate to the severity of the violations, while additionally constituting effective measures towards compliance with the provisions on the protection of personal data and also having a deterrent character to avoid further violations of the relevant legislation by the respondent.

FOR THESE REASONS

The Authority

Imposes on the respondent foreign language tutoring center named “GRIVAS CHARALAMPOS – MOUTZOURI ANASTASIA O.E.” as the data controller the effective, proportionate, and deterrent administrative monetary fine that is appropriate for this specific case, according to its particular circumstances, in the amount of one thousand (1,000) euros for the above-established violation of Articles 15 paragraph 1 GDPR and 12 paragraphs 1, 3, and 4 GDPR, according to Articles 58 paragraph 2 point (h) and 83 paragraph 5 point (b) GDPR, and in the amount of two thousand (2,000) euros for the above-established violation of Article 31 GDPR, according to Articles 58 paragraph 2 point (h) and 83 paragraph 4 point (a) GDPR.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou